

## 25NNCP00854 25NNCP00854

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-08-27

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#19 - TOTAL LENDER SOLUTIONS, INC., vs 1029 S. 8TH STREET, ALHAMBRA, CA 91801

### MOTION FOR ATTORNEY'S FEES AND COSTS

#### Petitioner Total

Lender Solutions, Inc. moves for an order awarding \$6,947.73 in attorney's fees and costs and directing the clerk to disburse that amount to Scheer Law Group, LLP from the deposited surplus proceeds.

#### The request for

judicial notice of the recorded foreclosure deed is GRANTED as to the document's existence, recordation, date, and legal significance. With respect to the deeds and other recorded documents, courts can take judicial notice of the existence and recordation of real property records, including deeds, if authenticity is not reasonably disputed. (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 264-265.)

The motion is denied without prejudice.

#### Civil Code section

2924k establishes priorities for proceeds from a trustee's sale conducted pursuant to section 2924h. The first priority includes authorized trustee and attorney fees. Subdivision (b) permits a trustee to charge costs and a reasonable fee for services connected with distributing proceeds, including investigating claims and disbursing funds.

#### Fees for enforcing

the secured obligation are separately governed by Civil Code section 2924d,

which limits recoverable trustee or attorney fees to the greater of \$475 or one percent of the unpaid principal secured when the notice of default was recorded.

Here, Petitioner has not established that section 2924k governs this sale. The recorded deed identifies Petitioner as a federal foreclosure commissioner and states that the sale proceeded under the federal Single Family Mortgage Foreclosure Act. Section 2924k, by its terms, governs proceeds of a trustee's sale conducted pursuant to Civil Code section 2924h. (Civ. Code, § 2924k.) The motion does not explain why that provision applies to this federally conducted foreclosure.

Additionally, the amount requested cannot be determined on the present record. Petitioner does not allocate the charges between enforcement work potentially governed by section 2924d and surplus-distribution work that Petitioner contends is governed by section 2924k(b). Nor does the evidence establish the unpaid principal when the notice of default was recorded, which is necessary to apply section 2924d's statutory limit. The deed instead identifies an unpaid debt of \$614,100.44.

Finally, page 3 of the billing records in Exhibit 1 includes \$1,200 for anticipated future services without identifying the services ultimately performed or the actual time incurred. The Court, therefore, cannot determine whether the full amount requested represents reasonable, completed, and statutorily recoverable work.

Court is to give notice.